



Office of the Chief Executive

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Our Ref: K-LM26/729
Date: 5 June 2026

**Metro South
Health**

Commissioner Dwyer
Queensland Industrial Relations Commission
Level 21 66 Eagle Street Brisbane
Qld, 4000
By email: qirc.registry@qirc.qld.gov.au

Dear Commissioner Dwyer

WC/2024/227 – Cory Lea Shepherd v Workers' Compensation Regulator

I refer to the Form 29 – Notice of non-party disclosure (the **Notice**) regarding the above matter. Mr Shepherd is a current employee of Metro South Hospital and Health Service (**Metro South Health**) as Switchboard Operator at Logan Hospital.

The Notice compels Metro South Health to produce various documents that Mr Shepherd claims to require for his Workers' Compensation Appeal.

Metro South Health has complied with some of the Items requested in the Notice as outlined below. In accordance with Rule 64E(4) of the *Industrial Relations (Tribunals) Rules 2011*, our objections to production/compliance with the Notice are also outlined below.

At the outset, it should be noted that Metro South Health is not in receipt of the Applicant's Amended Statement of Facts and Contentions (Form 9A). Throughout the Notice, the Applicant has expressed various opinions and views about the relevance of the documents to the allegations and stressors the subject of the appeal. While Metro South Health's substantiative grounds of objection to compliance with the Notice are outlined below, our ability to determine whether the requested documents are 'relevant' to the proceeding (and therefore give rise to an objection under Rule 64E4(b)) has, to some extent been limited. We submit this ought to be taken into consideration by the Commissioner.

Items 1 and 2 - SPOK emergency paging export and Aggregate SPOK activation counts

Metro South Health cannot comply with the request for Items 1 and 2. The requested records do not exist. The system was upgraded in SPOK, and records predating that upgrade were not retained. However, a spreadsheet of recorded MET calls is available for the period 17-18 March 2024.

Item 3(a) - Complaints received - server side exchange filter

Metro South Health objects to the production of Item 3(a). The reason for this objection is the expense and inconvenience that Metro South Health will incur (Rule 64E(4)(a)).

Better together

All employee complaints relating to Logan Hospital Switchboard operational errors are made directly to the Line Manager of Switch Board and managed solely via email or verbally with the complainant.

Metro South Health's core function is to provide health services to the public. Compliance with a request of this date range would require approval from the Health Service Chief Executive to engage external resources and assistance from eHealth Queensland at the Department of Health to review and search individual staff member email accounts. This would have a significant administrative and operational burden. Particularly as the date range requested is so broad (between the period 1 December 2023 to 30 June 2024). In circumstances where the Matter in Issue as pleaded in the Notice relates to "consecutive shifts of 17 to 18 March 2024", Metro South Health submits a search of the requested range and breadth will take an unreasonable amount of time and resourcing and detract from our core functions of providing health care to the community.

Item 3(b) - Management discussion of complaints

Metro South Health relies on the same grounds for objection as for Item 3(a) above.

Item 3(c) - Consequential changes to operating procedures

Metro South Health cannot comply with the request for Item 3(c) because there have been no 'consequential' changes to operating procedures over the period requested.

Item 4 - FRMS risk assessment record

Metro South Health cannot comply with the Notice in relation to Item 4. This is because the requested documents do not exist. Mandatory Fatigue Risk Management System training only applies to health practitioners and clinical assistants. The Logan Hospital Switchboard staff are non-clinical staff, and therefore there is no mandatory requirement for them to complete Fatigue Risk Management System training.

Item 5 - FRMS training and competency records

Metro South Health cannot comply with the request in relation to Item 5. The implementation of fatigue risk management assessment at Switchboard Logan Hospital occurred after 30 June 2024 in connection with an organisational change related to the reporting lines for Switchboard.

Item 6 – FRMS delegation and governance record

Metro South Health encloses the attached Role Description for Manager of Switchboard Services.

Item 7 - FRMS register entries and switchboard roster expectations

Metro South Health cannot comply with the Notice in relation to Item 7. This is because the requested documents do not exist. Mandatory Fatigue Risk Management System training only applies to health practitioners and clinical assistants.

Item 8 – Management System Log in records

Metro South Health objects to the production of Item 8. The reason for this objection is the expense and inconvenience that Metro South Health will incur (Rule 64E(4)(a)).

Compliance with a request of this date range would require approval from the Health Service Chief Executive to engage external resources and assistance from eHealth Queensland at the Department of Health to review and search individual staff member email accounts. This would have a significant administrative and operational burden, particularly as the date range requested is so broad (between the period 1 December 2023 to 30 June 2024) and a search of the requested

range and breadth will take an unreasonable amount of time and resourcing and detract from our core functions of providing health care to the community. In circumstances where the Matter in Issue as pleaded in the Notice relates to “consecutive shifts of 17 to 18 March 2024”, Metro South Health submits this date range is a reasonable range to search.

Further, the reference to “*Management system login records - Active Directory / Entra ID / Citrix. Native electronic 2024 export of Windows Active Directory, Entra ID and Citrix session-login audit records*” is unreasonably broad (lacking particularity). Metro South Health uses various application platforms and it is not clear which system is being referred to.

Item 9 - Management building access

Metro South Health objects to the production of Item 9 on the basis that the request lacks relevance, particularity and could affect a person (Rule 64E(4)(b)(c) and (f)). The Switchboard office is collocated in an office area where there are other staff from various departments going through the office area. The switchboard office does not have its own access-swipe access.

The Applicant is a current employee and reports directly to the line manager. The request is unreasonably broad (lacks particularity) and production could have an effect on the line manager.

Item 10 - various

Metro South Health objects to the production of the documents requested in Item 10. The reason for this objection is the expense and inconvenience that Metro South Health will incur (Rule 64E(4)(a)). Compliance with a request of this date range would require approval from the Health Service Chief Executive to engage external resources and assistance from eHealth Queensland at the Department of Health to review and search individual staff member email accounts. This would have a significant administrative and operational burden. Particularly as the date range requested is so broad (between the period 1 December 2023 to 30 June 2024).

In circumstances where the Matter in Issue as pleaded in the Notice relates to “consecutive shifts of 17 to 18 March 2024”, Metro South Health submits a search of the requested range and breadth will take an unreasonable expenditure of time and resourcing, and detract from our core functions of providing health care to the community.

Item 11 - Appellant's MyHR audit trail - COVID Special Pandemic Leave (Process Reference 15480560)

Metro South Health encloses the following documents in compliance with the request for Item 11

- MyHR report leave submission for period 1 February 2024 to 31 May 2024;
- Leave form evidence of pandemic leave for period 20 to 27 February 2024;
- Leave form for period 20 to 27 February 2024;
- AVAC history for pandemic leave for the period 20 to 27 February 2024.

Item 12 – Comparator MyHR audit trails

In compliance with the request for Item 12, Metro South Health encloses a complete audit trail of the requested pandemic leave for the period requested for Logan Hospital Switchboard.

Metro South Health otherwise objects to the production of other documents as outlined in Item 12.

This request would require accessing the relevant staff members' supporting evidence of their Special Pandemic Leave requests during the period 1 January 2024 – 30 June 2024. Examples of supporting evidence could be a photograph of a positive COVID test, medical certificate, lab results confirming COVID diagnosis, or letter from their child's school in the event of school closure.

This request is unreasonable in circumstances where the effect of production would have on the other staff members (i.e. breach of their right to their privacy and reputation) and that the proof of COVID test contains confidential and sensitive personal health information of the relevant staff members.

Item 13 – Line Manager authority framework – COVID Special Pandemic Leave processing

In compliance with the request for Item 13, we enclose:

- HR Delegation COVID-19 Pandemic Event – Paid Special Pandemic Leave signed 23 November 2022;
- Pandemic Directive 01/20 – Employment Arrangements in the event of a Health Pandemic
- Implementation Guideline – Directive 01/20 dated 14 April 2020.

Item 14 - Text message and electronic communication corpus - Appellant and Line Manager concerning COVID Special Pandemic Leave

The requested information in Item 14 is not in control or possession of Metro South Health. The line manager was not issued with a Queensland Health mobile device, and as such the SMS messages exchanged between the Applicant and the Line manager relating to the pandemic leave request was made using the line manager's personal mobile device. The Queensland Health retention policy does not apply to employee's personal mobile.

The Switchboard line manager was issued with Queensland Health mobile device in or around the third quarter of 2024.

Item 15 - Leave ledger - 19 March 2024

In compliance with the request for Item 15, we enclose:

- Leave takings report for the Applicant 19 March 2024.

Item 16 - AVAC payroll export - Appellant (PRN 15397775 and PRN 15605601).

In compliance with the request for Item 16, we enclose:

- Daily Staffing variance form for the period 5 to 18 February 2024.
- Daily Staffing variance form for the period 19 February 2024 to 3 March 2024.

Item 17 – Comparator payroll export

Metro South Health objects to the production of Item 17 on the basis of Rule 64E(4)(e). Disclosing the requested information would infringe upon the human rights to privacy and reputation of the team members within the switchboard team, because:

- The staff members' identity can be easily re-identified even if redacted.
- The Logan Hospital Switchboard team is comprised of a small team.
- Given that the Applicant is a current employee within the same team, re-identification of the other team member would create a real risk of harm to their reputation.

Item 18 - Communication Book and 15 November 2023 Business Case minutes

Metro South Health objects to the production of Item 18 on the grounds of irrelevance (Rule 64E(4)(b)). The Notice indicates that the destruction of the record had already been pleaded at Form 9A, Part B, para 2 Stressor I(b) (Form 24, Para 14). In those circumstances, it is difficult to identify the relevance of the present request, given that the issue appears to have already been conceded.

Item 19 - Union delegate correspondence - server-side Exchange server

Metro South Health objects to the production of Item 19 on the basis of Rule 64E(4)(a) and (f).

Metro South Health employed approximately 20,006 MOHRI occupied headcount during the period of the dates of the Notice. The requested documents require searching through these staff's email messages received from Together Queensland. Compliance with a request of this date range and email recipients would require approval to engage external resources and assistance from eHealth Queensland at the Department of Health, resulting in a significant administrative and operational burden. We consider that the date range ought to be narrowed to 17-18 March 2024, limited to emails received from Together Queensland by the Switchboard line manager and their Director, or by members of the Logan Hospital Human Resources team who were employed by and remained with Metro South Health.

Further, any disclosure of correspondence involving Together Queensland would also require consultation with or issuing a production notice to them (as an affected party), if they were included in the email communication.

Item 20- Operational HR reaction to PID 24-ESU-1130

The information requested in item 20 does not exist, as the reference cited in the Notice being "PID24-ESU-1130" commenced in November 2024, which falls outside the specified search period of 13 May 2024 to 31 May 2024.

In the event you have any questions or concerns about this correspondence, I have arranged for a Principal Lawyer from the Metro South Health Legal team to be available to assist. Please contact metrosouthlegal@health.qld.gov.au

Yours sincerely



Digitally signed by
Noelle Cridland
Date: 2026.06.05
14:54:08 +10'00'

Ms Noelle Cridland

Chief Executive

Metro South Hospital and Health Service

Enc. Documents relating to items 6, 11, 12, 13, 15 and 16 of the Notice